



POLICE DEPARTMENT

July 23, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202401079 (Incident Date: January 30, 2024) regarding Police Officer Harryson Cothias, Tax No. 973074 (PODS Case No. C-034598)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202401079, pertaining to Police Officer Harryson Cothias. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations but disagrees that Charges and Specifications are the appropriate form of discipline. Here, the Officers responded to a 911 call for a dispute with a knife. Officer Cothias entered the apartment building twice; however, the second time he entered, he failed to reactivate his body-worn camera immediately and only did so after he was in the complainant's apartment. Officer Cothias also failed to offer the individual her Right to Know business card. However, given Officer Cothias' lack of disciplinary history and lack of prior substantiated CCRBs, the Police Commissioner finds that the matter would be best resolved with a Command Discipline rather than Charges and Specifications.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day and formalized training for the misconduct.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 28, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202401079 (Incident Date: January 30, 2024) regarding Police Officer Harryson Cothias, Tax No. 973074 (PODS Case No. C-034598)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated July 23, 2025 (hereinafter the “Letter”), informing the Civilian Complaint Review Board (hereinafter the “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and issue a Schedule “A” Command Discipline with the forfeiture of one (1) vacation day and formalized training against Police Officer Harryson Cothias (hereinafter “Officer Cothias”) for Specifications (1) through Three (3).

Pursuant to Paragraph 2 of the Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter the “NYPD”), dated April 2, 2012, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s Letter agrees with the CCRB’s substantiation of three (3) allegations against Officer Cothias. Nevertheless, citing Officer Cothia’s lack of disciplinary history and lack of prior substantiated CCRB allegations, the Letter concludes that the matter would be best resolved with Command Discipline rather than Charges and Specifications. The CCRB respectfully disagrees with this assessment.

Deputy Chief Baker’s Letter does not dispute that Officer Cothias pushed his way into § 87(2)(b) apartment without her consent, in violation of not just the Patrol Guide but § 87(2)(b) Fourth Amendment right to be secure in her home against warrantless police entry. Officer Cothias himself acknowledged that he needed her consent to enter § 87(2)(b) apartment. Specification One (1). After having unlawfully entered § 87(2)(b) home, Officer Cothias compounds his casual violation of § 87(2)(b) Fourth Amendment right, in that Officer Cothias also failed to offer § 87(2)(b) his Right-to-Know business card, as required by the Patrol Guide. Specification Two (2). Finally, it is also undisputed that Officer Cothias flouted the Patrol Guide further when he failed to continuously record for the duration of his police interaction with § 87(2)(b) Specification Three (3).

The CCRB submits that, notwithstanding Officer Cothias lack of disciplinary history or substantiated CCRB allegations, given Officer Cothias violation of § 87(2)(b) Fourth Amendment right to be secure in her home against warrantless police entry and casual disregard for the rules set forth in the Patrol Guide intended to promote community trust and transparency in NYPD policing, Charges and Specifications are the most appropriate form of public accountability.

Based upon the foregoing, it is respectfully requested that the NYPD serves Charges and Specifications upon Officer Cothias.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin

General Counsel

NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 29, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202401079 (Incident Date: January 30, 2024) regarding Police Officer Harryson Cothias, Tax No. 973074 (PODS Case No. C-034598)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 28, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Harryson Cothias, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Cothias for the reasons expressed in my July 23, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day and formalized training for the substantiated allegations.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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